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US House committee wants travel companies to disclose AI use for pricing

Minnesota Governor Tim Walz and Attorney General Keith Ellison testify before the House Oversight and Accountability Committee, in Washington · Reuters

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By David Shepardson

WASHINGTON, March 5 (Reuters) - The chair of the U.S. House Oversight Committee asked the CEOs of five major travel companies including Uber, Lyft and Expedia on Thursday to disclose whether they were using surveillance pricing of consumers to hike costs.

Representative James Comer, the Republican chair of the committee, raised concerns in letters to companies including Booking.com and Instacart that the rise of surveillance pricing algorithms and use of highly personalized consumer data may create opportunities "for companies to weaponize personal data and pad their profit margins at the expense of providing transparency to consumers."

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Which travel companies are being investigated for surveillance pricing?

How do companies respond to surveillance pricing allegations?

What is surveillance pricing and how does it work?

Surveillance pricing is a strategy where companies use a consumer's personal data — such as browsing history, location and shopping habits — to set individualized, algorithmic prices for products, as opposed to using standard, market-wide pricing.

Comer said in the letters, first reported by Reuters, that travel companies may utilize surveillance pricing to deploy algorithms that determine a consumer’s emotional state, purchase intent and maximum willingness to pay, and that an individualized price is tailored accordingly.

Comer cited a media report that Uber deployed AI-based pricing technology to offer varying prices for identical products. Uber said on Thursday it does not engage in surveillance pricing and does not personalize prices. "Fares are determined by factors like location, time, and demand, not by a customer’s individual characteristics, past behavior, or device information," Uber said.

Expedia said in response it "does not increase prices based on user data or activity and does not personalize pricing based on any protected personal characteristics."

Instacart said it "does not engage and has not engaged in surveillance pricing – period. No personal, demographic, or user-level behavioral information about individuals is used by retailers

to set item prices on Instacart."

Comer's letters seek documents by March 19 including communications detailing revenue management algorithms and their financial impact.

"Often this takes place in a 'black box' environment where consumers do not know that personalized pricing is taking place or what information collected about them are driving prices," Comer wrote.

Comer noted that companies use consumer data to create a “profile” based on individualized features such as "geolocation, demographics, browsing history, purchase history, device type, battery life, and even mouse clicks to assign different prices to different individuals."

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